Alabama Rules of Criminal Procedure

Rule 1. Scope; Purpose, Objectives, and Construction; Computation and Enlargement of Time; Definitions; Effective Date.

Rule 1.2. Purpose, objectives, and construction.

These rules are intended to provide for the just and speedy determination of every criminal proceeding. They shall be construed to secure simplicity in procedure, fairness in administration, and the elimination of unnecessary delay and expense, and to protect the rights of the individual while preserving the public welfare.

Committee Comments

This rule carries with it the constitutional guarantee found in Article I, § 6, Alabama Constitution of 1901, that no person shall "be deprived of life, liberty, or property, except by due process of law."

Important to the formulation of Rules of Criminal Procedure is the recognition that rules of law are difficult to administer unless they are set forth in a form which is intelligible to the officers who are to act under them and to all persons whose rights are affected by them and who are required to conform to them.

In these rules the terms "he," "his," "him," and "himself," when used, are used in the general sense and not as gender designations. As used, they include, as appropriate, both the masculine and feminine, as well as the neuter in the case of subjects not customarily classified by gender.